

CV-26-001914 STANISLAUS COUNCIL OF GOVERNMENTS vs COOPER, BRANDON W – Defendant’s Motion for Reconsideration – GRANTED.

County: stanislaus

Division: Civil Law and Motion

Department: 22

Hearing date: 2012-04-02

Motion: For the reasons below, the motion for reconsideration is GRANTED. The Court will modify its previous order to set November 30, 2026, as the effective date on which Plaintiff shall be entitled to take possession of the Subject Property. Moving party to submit a proposed order within five court days that comports with this ruling. On July 17, 2026, Defendants Brandon W. Cooper and Katie M. Cooper filed the instant motion for reconsideration pursuant to Code of Civil Procedure section 1008. Defendants seek reconsideration of the Court’s July 21, 2026 order granting Plaintiff Stanislaus Council of Government’s (“StanCOG”) Motion for an Order for Possession of the Subject Property. Plaintiff opposed and Defendants replied. Per the Court’s previous July 21, 2026, Plaintiff is authorized to take prejudgment possession of the Subject Property no earlier than August 23, 2026. A party “may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order.” (Code Civ. Proc., § 1008.) “If the motion is opposed by a defendant or occupant within 30 days of service, the court may make an order for possession of the property upon consideration of the relevant facts and any opposition, and upon completion of a hearing on the motion, if the court finds each of the following: (A) The plaintiff is entitled to take the property by eminent domain. (B) The plaintiff has deposited pursuant to Article 1 (commencing with Section 1255.010) an amount that satisfies the requirements of that article. (C) There is an overriding need for the plaintiff to possess the property prior to the issuance of final judgment in the case, and the plaintiff will suffer a substantial hardship if the application for possession is denied or limited. (D) The hardship that the plaintiff will suffer if possession is denied or limited outweighs any hardship on the defendant or occupant that would be caused by the granting of the order of possession.” (Code Civ. Proc., § 1255.410(d)(2).) Defendants argue that Plaintiff does not satisfy the “overriding need” or “substantial hardship” elements required for prejudgment possession under Code of Civil Procedure section 1255.410(d)(2). The parties appear to be in agreement that the timeline of the project as issue in this matter has been extended. Plaintiff admits that the certification deadline was moved to January 19, 2027, and thus requests that the effective date of the Court’s previous order be extended to November 30, 2026. The change in timeline does not alter the Court’s previous findings regarding overriding need, substantial hardship, or the balance of hardships. (Code Civ. Proc., § 1255.410(d)(2).) It merely changes the date by which possession is required. Defendant’s argument regarding an “urgent” overriding need is not persuasive. A showing of urgency is required for an emergency order of possession that seeks possession earlier than permitted under the notice requirements because of, e.g., “a utility’s urgent need to protect the public’s health and safety[.]” (Code Civ. Proc., § 1255.410(e)(1); *Israni v. Superior Court* (2001) 88 Cal.App.4th 621, 632 [“If the condemning authority wishes to obtain possession earlier than permitted under the 30 or 90–day notice requirements, it must make an additional showing that it has an urgent need for possession[.]”].) That is unlike the situation here since Plaintiff is not seeking to obtain possession before the required 30 day notice period on an emergency basis under subdivision (e)(1). Defendants’ cite to *Israni* is inapposite because that case discusses “an ex parte application . . . for an [order of immediate possession] authorizing [Plaintiff] to take possession of the Property . . . three days after notice of the order is served[.]” (*Israni v. Superior Court*, supra 88 Cal.App.4th at 629.) In addition, Defendants quotation of section 1255.420 is taken out of context regarding timing and it is also misplaced. That section was repealed in 2006 by Senate Bill 1210, Section 4. (2006 Cal. Legis. Serv. Ch. 594 (S.B. 1210, SEC. 4) (WEST).)

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Per the Court's previous July 21, 2026, Plaintiff is authorized to take prejudgment possession of the Subject Property no earlier than August 23, 2026.

A party "may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order." (Code Civ. Proc., § 1008.)

"If the motion is opposed by a defendant or occupant within 30 days of service, the court may make an order for possession of the property upon consideration of the relevant facts and any opposition, and upon completion of a hearing on the motion, if the court finds each of the following:

(A) The plaintiff is entitled to take the property by eminent domain.

(B) The plaintiff has deposited pursuant to Article 1 (commencing with Section 1255.010) an amount that satisfies the requirements of that article.

(C) There is an overriding need for the plaintiff to possess the property prior to the issuance of final judgment in the case, and the plaintiff will suffer a substantial hardship if the application for possession is denied or limited.

(D) The hardship that the plaintiff will suffer if possession is denied or limited outweighs any hardship on the defendant or occupant that would be caused by the granting of the order of possession."

(Code Civ. Proc., § 1255.410(d)(2).)

Defendants argue that Plaintiff does not satisfy the "overriding need" or "substantial hardship" elements required for prejudgment possession under Code of Civil Procedure section 1255.410(d)(2). The parties appear to be in agreement that the timeline of the project as issue in this matter has been extended. Plaintiff admits that the certification deadline was moved to January 19, 2027, and thus requests that the effective date of the Court's previous order be extended to November 30, 2026. The change in timeline does not alter the Court's previous findings regarding overriding need, substantial hardship, or the balance of hardships. (Code Civ. Proc., § 1255.410(d)(2).) It merely changes the date by which possession is required.

Defendant's argument regarding an "urgent" overriding need is not persuasive. A showing of urgency is required for an emergency order of possession that seeks possession earlier than permitted under the notice requirements because of, e.g., "a utility's urgent need to protect the public's health and safety[.]" (Code Civ. Proc., § 1255.410(e)(1); *Israni v. Superior Court* (2001) 88 Cal.App.4th 621, 632 ["If the condemning authority wishes to obtain possession earlier than permitted under the 30 or 90-day notice requirements, it must make an additional showing that it has an urgent need for possession[.]".]) That is unlike the situation here since Plaintiff is not seeking to obtain possession before the required 30 day notice period on an emergency basis under subdivision (e)(1). Defendants' cite to *Israni* is inapposite because that case discusses "an ex parte application . . . for an [order of immediate possession] authorizing [Plaintiff] to take possession of the Property . . . three days after notice of the order is served[.]" (*Israni v. Superior Court*, *supra* 88 Cal.App.4th at 629.) In addition, Defendants quotation of section 1255.420 is taken out of context regarding timing and it is also misplaced. That section was repealed in 2006 by Senate Bill 1210, Section 4. (2006 Cal. Legis. Serv. Ch. 594 (S.B. 1210, SEC. 4) (WEST).)